

in the best interest of the Conservatee. Thus, the matter is set for a Review – Biennial and for an Accounting in two years on September 05, 2028, at 8:30 a.m. in Dept. B. All accounting documents must be filed at least 30 days prior to the hearing. The Court Investigator shall prepare a biennial investigator report for the next hearing date. The Clerk is directed to send notice to the parties.

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Estate of Heidemarie A. Devore

25PR000271

PETITION FOR FINAL DISTRIBUTION OF DECEDENT’S ESTATE

TENTATIVE RULING: The petition is GRANTED, including fees as prayed. The December 18, 2026 Hearing Re: Final Distribution is therefore VACATED.

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In the Matter of the Bruce Sandoval Trust

26-60272

VERIFIED SEVENTH ACCOUNT OF SPECIAL NEEDS TRUST AND PETITION FOR ITS APPROVAL, FOR ALLOWANCE OF COMPENSATION TO TRUSTEE AND ALLOWANCE OF COMPENSATION TO TRUSTEE’S ATTORNEYS AND BOND FEES

TENTATIVE RULING: The petition is GRANTED. The matter is set for an Eighth Accounting on August 15, 2028, at 8:30 a.m. in Dept. A. All accounting documents must be filed at least 30 days prior to the hearing. The Clerk is directed to send notice to the parties.

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Conservatorship of Mary Jo Freeman

26PR000171

PETITION FOR APPOINTMENT OF PROBATE CONSERVATOR OF THE ESTATE

TENTATIVE RULING: The matter is CONTINUED to October 01, 2026, at 8:30 a.m. in Dept. B.

The proposed conservatee needs counsel appointed and counsel needs notice of the hearing. Petitioner shall prepare an order appointing the Public Defender for the Court’s signature and provide notice of the continued hearing date to the Public Defender.

The Court notes that the Amended Petition checks box 8(c), indicating that the Proposed Conservatee is unable to attend the hearing due to medical inability. To the extent the Proposed Conservatee does not plan to appear at the continued hearing, Petitioner shall file the Declaration on Medical Ability to Attend Hearing (Judicial Counsel of California form GC-325).

Petitioner is encouraged to contact the Court’s Self-Help Center, located on the lower level of the Historic Courthouse at 825 Brown Street, for assistance.

CIVIL LAW & MOTION CALENDAR – Hon. Joseph J. Solga, Dept. B (Historic Courthouse) at 8:30 a.m.

Susan Scurich et al v. Northgate Cottages at Silverado, Inc. et al

24CV000076

MOTION TO BE RELIEVED AS COUNSEL

APPEARANCE REQUIRED

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Platte River Insurance Company v. William Deem et al

24CV000384

MOTION FOR AWARD OF ATTORNEY FEES

TENTATIVE RULING: the motion is GRANTED.

The moving party failed to include in the notice of this motion proper notice of the Court’s tentative ruling system as required by Local Rule 2.9. Moving party is directed to immediately provide, by telephone call AND email, the missing notice to opposing party/ies forthwith. The requirements for requesting oral argument under Local Rule 2.9 remain in effect. However, the Court may grant belated requests for oral argument or continuance of hearing, made by any party who represents it did not timely receive the required notice, regardless of whether or not moving party is present at the hearing.

“Code of Civil Procedure section 1021 provides the basic right to an award of attorney fees.” (*Xuereb v. Marcus & Millichap, Inc.* (1992) 3 Cal.App.4th 1338, 1341 (*Xuereb*)). “Except as attorney’s fees are specifically provided for by statute, the measure and mode of compensation of attorneys and counselors at law is left to the agreement, express or implied, of the parties....” (Code Civ. Proc., § 1021; see also Code Civ. Proc., § 1033.5, subd. (a)(10)(A) [allowing attorneys’ fees authorized by contract as costs].)

By Minute Order of December 4, 2025 (12/4/25 M.O.), the Court found that “Plaintiff, Defendant Kimberton Wines, LLC (as Applicant and Indemnitor) and Defendant William Deem (as Indemnitor) entered into that certain General Indemnity Agreement (Agreement) attached as Exhibit A to the Declaration of Justin Hinton (Hinton Decl.).”

That Agreement provides, in part, that “Indemnitors, individually, and jointly and severally with Applicant and all other Indemnitors, agree to hold CIC and/or PR harmless from all Loss and to pay back or reimburse CIC and/or PR for all Loss.” (*Id.* at ¶ 2.) The Agreement defines Loss to include, “any payment or expense either incurred or anticipated by CIC and/or PR in connection with any Bond or this agreement, including: . . . any other expense in connection with claims, potential claims, or demands; claim fees, penalties; interest; court costs; collection agency fees; costs related to taking, protecting, administering, realizing upon, or releasing collateral; and attorney’s fees (including but not limited to those incurred in defense of bond claims or pursuing any rights of indemnification or subrogation and in obtaining and enforcing any judgment arising from those rights.” (*Ibid.*)